Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 476

RESOLUTION RESPECTFULLY URGING THE GOVERNMENT OF THE DAY TO WORK WITH RELEVANT GOVERNMENT AGENCIES AND PROVIDE THE REQUIRED FUNDING FOR A TWO-YEAR EXTENSION OF THE LEASE AGREEMENTS FOR MARAWI INTERNALLY DISPLACED PERSONS TEMPORARY SHELTERS

WHEREAS, Section 11, Article II of the 1987 Philippine Constitution mandates that *"the State values the dignity of every human person and guarantees full respect for human rights;"*

WHEREAS, the Bangsamoro Government has the legal duty under the Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao (OLBARMM) to intensify development efforts to, among others, address the needs of internally displaced persons (IDPs), widows, orphans, and poverty-stricken communities which should include those affected by the 2017 Marawi Siege;

WHEREAS, for this purpose, a Special Development Fund is provided for rebuilding, rehabilitation, and development of its conflict-affected communities in the amount equivalent to Fifty Billion Pesos (₱50,000,000,000.00) allocated at Five Billion Pesos (₱5,000,000,000.00) annually for ten (10) years from the ratification of the OLBARMM and in accordance with the Bangsamoro Development Plan (BDP);

WHEREAS, Republic Act No. 7160 otherwise known as the *"Local Government Code of 1991"*, mandates the city government to provide social welfare services to its constituents including the alleviation of their problems and improve their living conditions;

WHEREAS, in an interview conducted by Rappler with the Local Government Unit (LGU) of Marawi City, the latter said it entered into lease agreements with various private landowners to lease their lands in 2017 to secure temporary shelters for the IDPs immediately after the five-month-long Marawi Siege;

WHEREAS, the Marawi City LGU furthered that the land lease agreements covered the following areas: twenty (20) hectares in Barangay Sagonsongan, twenty (20) hectares in Barangay Boganga, five (5) hectares in Barangay Dulay, and three (3) hectares in Barangay Patani and Barangay Rorugagus;

WHEREAS, the Marawi City LGU added that all the agreements had five-year tenures, which ended in the first quarter of 2023;

WHEREAS, the National Housing Authority–Marawi Project Management Office confirmed that there are one thousand nine hundred seventy-two (1,972) temporary shelters that are occupied by the Marawi IDPs;

WHEREAS, Task Force Bangon Marawi reported that there are still four thousand nine hundred sixteen (4,916) families living in transitory shelters;

WHEREAS, on September 3, 2023, it was reported that a notice of eviction and demand for payment of rental fee was issued by private landowners to the IDPs situated in temporary shelters in areas of Division 2, Division 4, and Division 5 of Boganga Lake View Shelter in Barangay Boganga, affecting at least one thousand one hundred eighty-nine (1,189) families and eight hundred forty-five (845) houses, while Rorugagus Temporary Shelter with two hundred seventy (270) families and two hundred seventy (270) houses received a notice of eviction on September 19, 2023, with a total of at least one thousand four hundred nineteen (1,419) families are affected by the said notice;

WHEREAS, on October 11, 2023, the Office of Member of Parliament Diamila Disimban-Ramos conducted an interview with IDPs affected in Brgy. Boganga and Brgy. Rorugagus confirmed that the notice of eviction issued will be enforced on October 15, 2023. Subsequently, a rental fee ranging from Five Hundred Pesos (₱500.00) to One Thousand Pesos (₱1,000.00), along with a water bill amounting to Six Hundred Pesos (₱600.00), will be imposed and collected from them;

WHEREAS, recently on October 12, 2022, the Mayor of Marawi City LGU, Atty. Majul U. Gandamra, assured that there will be no evictions of Marawi IDPs in temporary shelters as negotiations have been made with several landowners to extend the period of free land use. The extension will be for a period of six (6) to twelve (12) months;

WHEREAS, Section 13, Article VI of Republic Act No. 11054, otherwise known as *"Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao"*, states that the Bangsamoro Government, in relation to the Marawi IDPs, has the power to *"provide for supplemental funding for national programs and projects"* on, among others, Marawi rehabilitation;

WHEREAS, under the BDP, No. 6 in the 12-Point Priority Agenda of the Bangsamoro Government provides for the support of the Marawi rehabilitation where it committed to *"support the ongoing rehabilitation, reconstruction, and recovery of Marawi"*, this has been reiterated in the 2nd BDP for 2023-2028 in its 12 Point Priority Agenda;

WHEREAS, the Office of the Chief Minister (OCM) has allocated more or less Five Hundred Million Pesos (₱500,000,000.00) dedicated to the Marawi Rehabilitation Program to provide meaningful and IDP-centered support;

WHEREAS, there is a pressing need to address the issue of impending eviction urgently, despite the recent developments as it still threatens thousands of IDPs with homelessness and repeated displacement. Many of these displaced families are yet to be compensated by the government for their losses due to the siege and have no means to rebuild their homes;

WHEREAS, the Bangsamoro Government has the responsibility to ensure the dignity, safety, and well-being of the Marawi IDPs and shall continue to intensify the rehabilitation and development efforts in order to address their needs and uphold their protection, security, and dignity as they continue rebuilding their lives:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To respectfully urge the Government of the Day to work with relevant government agencies and provide the required funding for a two-year extension of the lease agreements for Marawi Internally Displaced Persons Temporary Shelters.

RESOLVED, FURTHER, To forward this Resolution to the OCM with prayer for prompt and appropriate action as he may deem best to address the dire and urgent need to extend the lease contracts of temporary shelters for the majority of Marawi IPDs.

ADOPTED, *Muharram* 11, 1446/July 17, 2024.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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